

**STATE OF VERMONT
SECRETARY OF STATE
OFFICE OF PROFESSIONAL REGULATION
BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS**

**IN RE: HILARY TYLER
License No. 068-0000522**

**) DOCKET No. MH03-0207
)**

STIPULATION AND CONSENT ORDER

NOW COMES the State of Vermont, by and through its State Prosecuting Attorney, Edward G. Adrian, and the Respondent, Hilary Tyler, who stipulate and agree as follows

Board Authority

1. The Vermont Board of Allied Mental Health Practitioners (the "Board") has jurisdiction to investigate and adjudicate allegations of unprofessional conduct committed by Clinical Mental Health Counselors pursuant to 3 V.S.A. §§ 129, 129a; 26 V.S.A. Chapter 65 and; the rules of the Board and the Vermont Office of Professional Regulation.
2. Failing to comply with provisions of federal or state statutes or rules governing the practice of the profession is unprofessional conduct upon which the administrative law officer can base disciplinary action. 3 V.S.A. §129a(a)(3).
3. Practicing the profession when medically or psychologically unfit to do so is unprofessional conduct. 3 V.S.A. §129a(a)(5).
4. Fraudulent or deceptive procurement or use of a license is unprofessional conduct. 3 V.S.A. §129a(a)(1).
5. Performance of unsafe or unacceptable patient or client care or failure to conform to the essential standards of acceptable and prevailing practice is unprofessional conduct. 3 V.S.A. §129a(b)(1) and (2).
6. Engaging in any sexual conduct with a client, or with the immediate family member of a client, with whom the licensee has had a professional relationship within the previous two years is unprofessional conduct. 26 V.S.A. § 3271(a)(4).
7. Conduct which evidences unfitness to practice clinical mental health counseling is unprofessional conduct. 26 V.S.A. § 3271(a)(3).
8. Entering into an additional relationship with a client, supervisee, research participant or student that might impair the licensed clinical mental health counselor's objectivity or otherwise interfere with the clinical mental health counselor's obligations is unprofessional conduct. 26 V.S.A. § 3271(a)(6).
9. The Board has the authority to adjudicate and accept this Stipulation.

Alleged Facts

10. Hilary Tyler (the "Respondent") of East Thetford, Vermont is a licensed clinical mental health counselor holding license number 068-0000522, issued by the State of Vermont. This license is set to expire on January 31, 2009.
11. Client #1 is a former client of the Respondent. The Respondent saw Client #1 in a professional capacity between November, 2005 and December 26, 2005. Client #1 was being seen by the Respondent at Valley Vista (the "Facility") which is a long term residential drug and alcohol treatment center in Bradford, Vermont.
12. Client #1 was being treated by the Respondent for alcoholism, and also suffers from sexual abuse, depression and PTSD.
13. Starting at approximately December, 2005 the Respondent engaged Client #1 in an inappropriate sexual relationship, during the scheduled therapeutic sessions at the Facility.
14. Approximately one week after Client #1 left the Facility, the Respondent and Client #1 started an intimate sexual relationship,
15. Soon after Client #1 was told about the Respondent's relationship, she relapsed and started regularly consuming alcohol. Client #1 then checked herself into Serenity House which is another substance abuse treatment facility. While at Serenity House the Respondent engaged in inappropriate communications with Client #1."
16. Client #1 eventually moved out to her own apartment and the Respondent came over and had sexual relations with Client #1.
17. A forensic investigation identified that the Respondent had "text messaged" Client #1 several dozen times from April - June, 2006. These text messages (quoted verbatim) included: "I want to thank u for today. In the midst fo your own stuff u were kind and supportive of me. The love i feel surpasses any thing i have ever fel"; "I feel like you have more control over my heart then i do. I feel like an open wound."; "I want you to look at me like you earlier. I want to kiss your belly. I want to put your arrar around me."
18. During the interview the Respondent indicates that the behavior indicated above would have a negative impact on Client #1's rehabilitation.

Understandings

19. Respondent understands that the Board of Allied Mental Health Practitioners must review and accept the terms of the Consent Order. If the Board rejects any portion, the entire Stipulation and Consent Order shall be null and void.
20. Respondent specifically waives any claims that any disclosures made to the full Board during its review of this agreement have prejudiced her rights to a fair and impartial hearing in future hearings if this agreement is not accepted by the Board. When the Board reviews this Stipulation the State's disclosures to the Board shall consist solely of the terms contained in this Stipulation and Consent Order.
21. Respondent has read and reviewed this entire document and agrees that it contains the entire agreement between the parties.
22. Respondent voluntarily enters this agreement after the opportunity to consult with legal counsel and is not being coerced by anyone into signing the Stipulation and Consent Order.
23. Respondent voluntarily waives her right to charges and a contested hearing before the Board of Allied Mental Health Practitioners and waives any right to appeal from this Stipulation and Consent Order.
24. This Stipulation is neither an admission of liability by the Respondent nor a concession by the State of Vermont that its charges are not well founded. To avoid delay, uncertainty, inconvenience, and expense of protracted litigation of the charges above the Parties reach a full and final agreement pursuant to this Stipulation and that the Board may impose the Consent Order set forth below.
25. The Respondent does not admit to the alleged facts as outlined above, but does not contest that the State could prove at least some facts by a preponderance of the evidence that would result in a finding that Respondent has engaged in unprofessional conduct if this matter went to a merits hearing.

ORDER

Based on the Stipulation above it is **ORDERED AND ADJUDGED** as follows:

- A. The Board finds and accepts the facts as alleged in paragraphs 9-19 above; and
- B. Therefore, the Board finds that there is a sufficient factual basis to conclude that the Respondent has engaged in unprofessional conduct and has violated the statutory and regulatory provisions set forth in paragraphs 10-24 above.
- C. The Board hereby **SUSPENDS** Respondent's license 068-0000405 to practice clinical mental health **for a minimum period of three (3) years**. This suspension commenced

effective October 19, 2007 when the Respondent's license was summarily suspended.

ETHICS COURSE WORK - Before applying for reinstatement the Respondent shall take nine (9) credits of graduate level courses in ethics, dual relationships and boundaries. This program must be approved by the Board in advance.

EVALUATIONS - Before applying for reinstatement, the Respondent shall have two evaluations performed. Both evaluations shall be performed by professionals who are approved by the Board in advance of any evaluation. The first evaluation shall be performed by a psychologist licensed in the State of Vermont. The second evaluation must be performed by a psychiatrist licensed in the State of Vermont. Both evaluations must indicate 1) the Respondent's past medical and/or mental health history as appropriate; 2) what is being done to rectify both acute and chronic problems; 3) that the Respondent is fit and capable of returning to the practice of mental health counseling and does not present a risk of harm to the public; and 4) recommendations as to the Respondent's need for ongoing counseling.

At the end of the suspension period, the Respondent shall petition the Board for reinstatement of her license.

If reinstated the Respondent's license to practice as a clinical mental health counselor shall be **CONDITIONED for a PERIOD OF THREE (3) YEARS.**

The **CONDITIONS** on Respondent's license are as follows:

(1) **Supervision.**

Respondent shall permit her practice to be supervised by the Board through another mental health practitioner approved by the Board. Respondent shall submit the name and qualifications of three potential supervisors 60 (sixty) days before the date of reinstatement of the Respondent's license.

- a. The Respondent shall submit three names of potential supervisors with curriculum vitae; a cover letter from each supervisor and willingness to provide supervision; and the detail and type of any professional, personal or community relationship that the supervisor had with the Respondent in the past.
- b. The supervisor must have been a licensee of the Board for at least the last three years. The supervisor must be willing to meet with the Respondent at least once per week for face-to-face consultation and must provide for substitute consultation for when the supervisor cannot meet.
- c. A supervision plan shall be submitted to the Board for review and it shall include:
 - 1) the goals and objectives of the supervision, with an emphasis on dual relationships and ethical issues;
 - 2) identification of professional resources to be employed; and
 - 3) description of how the Respondent's clinical work will be assessed.

- d. The supervisor shall create and submit monthly reports concerning the progress of the Respondent in relation to the goals and objectives outlined in the supervision plan.

(2) **Counseling**

The Respondent shall continue to meet with a mental health professional for counseling as recommended by her evaluations.

D. Respondent shall bear the cost of compliance with the steps which Respondent has agreed to undertake pursuant to this Consent Order.

E. If Respondent violates the terms of this Consent Order, the Board, after giving Respondent notice and an opportunity to be heard, may take further disciplinary action.

F. This Stipulation and Consent Order shall remain part of Respondent's licensing file and may be used in any further disciplinary proceeding.

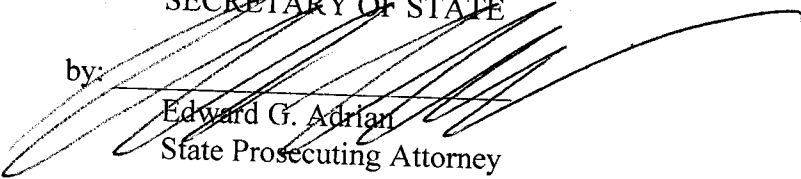
G. This Stipulation and Consent Order is a matter of public record and may be reported to other licensing authorities as provided in 3 V.S.A. §129(a).

AGREED TO:

Dated: 12/14/07

STATE OF VERMONT
SECRETARY OF STATE

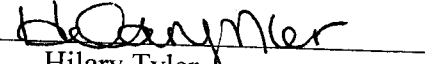
by:


Edward G. Adrian
State Prosecuting Attorney

HILARY TYLER
RESPONDENT

Dated: 12-18-07

by:

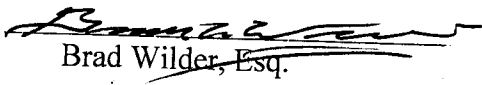

Hilary Tyler

APPROVED AS TO FORM:

ATTORNEY FOR RESPONDENT

Dated: 12/18/07

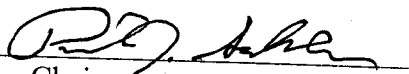
by:


Brad Wilder, Esq.

APPROVED AND SO ORDERED: VERMONT BOARD OF ALLIED MENTAL
HEALTH PRACTITIONERS

Dated: 1/17/08

by:


Chairperson

Dated entered: 1/18/08